

Naresh Kumar vs Amra Devi And Others on 27 September, 2023

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA RSA No. 4 of 2006 .

Reserved on: 28.08.2023

Date of Decision: 27.09.2023

Naresh Kumar

...Appe

of

Versus

Amra Devi and others

...Responde

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Hon'ble Mr. Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 Yes For the Appellant : Ms Devyani Sharma, Sr. Advocate with Mr. Basant Pal Thakur, Advocate.

For the Respondents : Mr. Suneet Goel, Advocate for Respondents No.1 and 2.

Respondent No.3 stands deleted.

Rakesh Kainthla, Judge The present appeal is directed against the judgment & decree dated 24.10.2005, passed by the learned Additional District Judge (Presiding Officer, Fast Track Court), Solan, District Solan, H.P., vide which the appeal filed by the present respondents (plaintiffs before the learned Trial Court) was Whether reporters of Local Papers may be allowed to see the judgment? Yes.

allowed and the judgment and decree dated 25.4.2005, passed by learned Civil Judge (Junior Division), Arki, District Solan, H.P. .

was set-aside. (Parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present of appeal are that the plaintiffs filed a civil suit before the learned rt Trial Court for seeking a declaration that the unregistered Will dated 15.8.1995 is a result of fraud, misrepresentation and Mutation No. 1036, dated 5.2.1997, based on the Will is

not binding upon the rights of the plaintiffs. A further declaration that plaintiffs are entitled to succeed to the property of Balak Ram being widow and daughter was also prayed. The plaintiff also sought a consequential relief of permanent prohibitory injunction for restraining the defendants from interfering in any manner, whatsoever, with the estate of Balak Ram.

3. It was pleaded that plaintiff no. 2 and Balak Ram were married in the year 1961 as per Hindu Customary Law prevalent in Tehsil Arki. The marriage was solemnized in Village Kuveru Sehrol and Basantpur. Amra Devi (plaintiff No.1) was born to the parties. The marriage was solemnized by Padam Dev, Vaid, a resident of Kalyanpur. The people of Village Basantpur .

participated in the marriage and took food in the house of Narotam, the father of Paragu. Amra Devi was married 10 years before the filing of the suit and she was residing in her matrimonial home. Balak Ram died on 26.12.1996 while of discharging his duties at Gumma. No intimation was given to the plaintiff no.2 because plaintiff no.1 is residing at Village rt Kuhawi and plaintiff no.2 is residing at Shimla. The relationship between the plaintiffs and Balak Ram was strained. The defendant propounded an unregistered Will stated to have been executed by Balak Ram in his favour; however, it is a result of fraud and misrepresentation. Balak Ram was working in the Electricity Department near Rampur and he was on duty on 14.8.1995. It was highly improbable that he would have visited the village to execute a Will on 15.8.1995 and joined his duties on 16.8.1995. The defendant got mutation no. 1036 attested in his favour on 5.2.1997. Learned AC-2nd Grade, Arki did not carry out the proper inquiry before attesting the mutation. The plaintiffs are entitled to inherit the estate of Balak Ram; hence suit was filed to seek the reliefs mentioned above.

4. The suit was opposed by filing a written statement, taking preliminary objections regarding lack of locus standi, .

cause of action and maintainability, the plaintiffs being out of possession, the suit being bad for want of material and necessary particulars, improper valuation of the suit and the plaintiffs being estopped from filing the present suit by their act of and conduct. The contents of the plaint were denied on merits. It was specifically denied that plaintiff no.1 is the daughter of the rt deceased and plaintiff no. 2 is the widow of the deceased. It was asserted that there is no customary law applicable to the Arki area. The marriages are solemnized according to the Hindu religion. The suit has been filed in collusion with Padam Dev Vaid, Mansa Ram and Nek Ram. Pragu never lived as the wife of the deceased Balak Ram and plaintiff no. 1 is not the daughter of the deceased. The defendants did not know about the marriage of Amra Devi (plaintiff no. 1). There was no relationship between the plaintiff and the deceased Balak Ram. The plaintiffs have fabricated a false story. Kuwahi is located at a distance of 30-40 kilometres from Koiru Shehrol. The defendant is the brother's son of the deceased. The deceased also treated defendant no. 1 as his son because he had no issue at the time of his death nor had he any wife. The defendant and his father served the deceased and performed his last rites. The suit for declaration without .

seeking possession is not maintainable. The deceased executed the Will in favour of the defendant after being satisfied with the services rendered by the defendant. Hence, it was prayed that the suit be dismissed.

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5. A replication denying the contents of the written rt statement and affirming those of the plaint was filed.

6. The learned Trial Court framed the following issues on 18.9.1999:-

1. Whether the plaintiffs are successors of the late Sh.

Balak Ram being daughter and wife, respectively, as alleged? OPP.

2. Whether the Will dated 15.8.95 executed by Shri Balak Ram in favour of defendant No.1 is null and void, illegal and result of fraud as alleged? OPP.

3. Whether the plaintiffs are entitled to the relief of injunction as prayed for? OPP.

4. Whether the plaintiffs have no locus standi to file the suit? OPD.

5. Whether the plaintiffs have no cause of action to file the present suit? OPD.

5-A. Whether the suit is not maintainable in the present form? OPD.

6. Whether the suit is not properly valued for the purpose of court fee and jurisdiction? OPD.

7. Whether the plaintiff is estopped from filing of the suit by her act and conduct as alleged? OPD.

8. Relief.

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7. The parties were called upon to produce the evidence.

Plaintiff No. 2 Paragu Devi examined herself (PW-1), Padam Dev (PW-2), Mansa Ram (PW-3), Kameshwar Gautam (PW-4), and Jia Lal (PW-5). The defendant examined Jagannath (DW-1), Jeet of Ram (DW-2), Naresh Kumar (DW-3) and Kameshwar Gautam (DW-4).

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8. The Learned Trial Court held that the version of the plaintiffs was highly contradictory. They claimed in the plaint that the marriage between Paragu and Balak Ram was solemnized as per the customary law, whereas the evidence was led to prove that the marriage was solemnized according to Vedic form. The statement of Padam Dev (PW-2) was not satisfactory because he did not remember any date of the marriages solemnised by him except the marriage of plaintiff no. 2. Mansa Ram (PW-3) was aged 52 years on the date of the deposition and would have been 12 years of age at

the time of the marriage; hence, his testimony was not reliable. A petition under Section 10 of the Hindu Marriage Act was also produced but the same mentioned the name of the daughter as Nirmal. A birth certificate (Ex.PW-1/A) was produced but Balak Ram mentioned in the certificate cannot be connected to Balak Ram .

(deceased). Plaintiff No. 1 did not step into the witness box and adverse inference has to be drawn against her. Learned Trial Court answered issues no. 1 to 3 and 7 in negative, issues No. 4 and 5 in affirmative, Issue No. 6 as not pressed and dismissed of the suit.

9. rt Being aggrieved from the judgment and decree passed by the learned Trial Court, the plaintiffs filed an appeal, which was decided by the learned Additional District Judge, (Fast Track Court), Solan. Learned First Appellate Court held that the defendants had asserted in their written statement that the deceased had no issue or wife at the time of his death, which implies that the marriage and the birth of the child were not disputed during the lifetime. It was suggested to the plaintiff Paragu in her cross-examination that she had never served Balak Ram which implies an admission because only a wife would serve the husband. The evidence of the defendants also stressed the absence of the wife and the child at the time of the death and it was not sufficient to controvert the plea of the plaintiffs regarding marriage. The learned Trial Court erred in rejecting the birth certificate on the ground that it could not be connected to Balak Ram (deceased) because there was no .

evidence that any other Balak Ram resided in Village Kuwru Shehrol. There was no dispute between the parties regarding the ceremonies performed at the time of the marriage, therefore, the testimony regarding the form of marriage was not material.

of Copy of the petition filed by the plaintiff under Section 10 of the Hindu Marriage Act also corroborated her version that she was rt the wife of Balak Ram. The plaintiffs were out of possession and they had not sought the relief of possession; however, they had sought the relief of injunction and the Court had the power to modify the relief. Hence, the learned First Appellate Court set aside the judgment and decree passed by the learned Trial Court and decreed the suit for declaration and possession.

10. Being aggrieved from the judgments and decrees passed by the learned First Appellate Court, the present appeal has been filed, asserting that the learned First Appellate Court had not appreciated the material placed before it. Learned First Appellate Court did not consider the evidence of all the witnesses and did not discuss all the documents filed by the parties. The plaintiffs had examined five witnesses and the defendants had examined four witnesses. Many documents were produced. However, these were not appreciated by the learned .

First Appellate Court. The defendants had specifically pleaded that the deceased was not married and he had no child. Learned First Appellate Court erred in holding that the denial was confined to the time of the death. The name of the mother and of child were not mentioned in the birth certificate and there was no evidence to connect the birth certificate to the plaintiffs. No rt prayer was made for delivery of possession and the learned First Appellate Court erred in granting the relief

of possession. A suit for declaration without seeking the possession was not maintainable; hence, it was prayed that the present appeal be allowed and the judgment and decree passed by the learned First Appellate Court be set aside.

11. The appeal was admitted on the following substantial questions of law on 13.1.2006:-

1. Whether the impugned judgment and decree is the result of complete misreading, misrepresentation as well as misappreciation of Ext.PW-4/A copy of Parivar register as well as Ext.DW-4/A Pedigree Table?

2. Whether the learned lower appellate court is right in not drawing an adverse inference against the respondents-plaintiffs for non-appearance of respondent No.1 by not considering the provisions of Section 114(g) of the Indian Evidence Act?

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3. Whether the learned lower appellate Court is right in not considering the entire oral as well as documentary evidence as required of it in view of the judgment of Hon'ble Apex Court reported in 2000 (5) SCC 652?

4. Whether the impugned judgment and decree is the result of non-consideration of the provisions of order 7 rule 7 CPC?

5. Whether the learned lower appellate Court was right in not considering the fact that the respondents-

plaintiffs having failed to prove their status being daughter and widow as adjudicated by the learned trial Court?

12. I have heard Ms Devyani Sharma, learned Senior Counsel, assisted by Mr. Basant Pal Thakur, Advocate, for the appellants-defendants and Mr. Suneet Goel, learned Counsel for the respondents-plaintiffs no. 1 and 2.

13. Ms. Devyani Sharma, learned Senior Counsel for the appellants/defendants submitted that the learned First Appellate Court erred in stressing the words, "at the time of death". Defendants had categorically stated in the written statement as well as in the statement on oath that plaintiffs had no concern with Balak Ram. Plaintiff No. 1 is not the daughter and plaintiff No.2 is not the wife of Balak Ram. The whole approach of the learned First Appellate Court was vitiated by stressing the words, "at the time of the death". There was no .

evidence to corroborate the version of Paragu. No document was produced to show that the plaintiffs were ever treated to be wife and daughter by Balak Ram. Balak Ram was admittedly serving in the Electricity Department and the record could have been produced to show that Balak Ram had declared the plaintiffs to be his wife or daughter. Even the admission register of

plaintiff rt no. 1 was not brought on record to show that she was mentioned as the daughter of Balak Ram in the school record. No witness from the locality was examined to establish this fact. The burden of proof was upon the plaintiffs and they failed to discharge the same. A civil suit for declaration and consequential relief of permanent prohibitory injunction could not have been decreed when the plaintiffs were found out of possession. Such a suit was not maintainable and was liable to be dismissed. Therefore, she prayed that the present suit be allowed and judgment and decree passed by the learned First Appellate Court be set aside.

14. Mr. Suneet Goel, learned counsel for the respondents-plaintiffs no. 1 and 2 supported the judgment and decree passed by the learned First Appellate Court and submitted that there was no infirmity in the same. Learned Trial Court had rejected the case of the plaintiffs on irrelevant .

consideration, which error was rectified by the learned First Appellate Court. The statements of the plaintiff and her witnesses were satisfactory and there was no occasion for drawing an adverse inference against Amara Devi. Hence, he of prayed that the present appeal be dismissed.

15. rt I have given considerable thought to the rival submissions at the bar and have gone through the records carefully.

Substantial Questions of Law No. 1 and 5:

16. These substantial questions of law are intricately connected and are being taken up together for discussion for convenience.

17. Learned First Appellate Court held that the defendant had denied the relationship of the plaintiff only at the time of the death of Balak Ram and not during his lifetime. This was a complete misreading of the written statement. It was asserted in para-1 of the preliminary objections in the written statement that the plaintiffs have no locus standi to file the present suit as they are not related to deceased Balak Ram. Plaintiffs Amara Devi and Paragu are not the daughter and widow of the deceased .

respectively. It was stated in para-4 of the preliminary objections that the entire estate of deceased Balak Ram is in possession of the defendant who is the brother's son of the deceased. Balak Ram had also treated defendant no. 1 as his son of because the deceased had no issue at the time of his death nor had he any wife. It was stated in para-7 of the preliminary rt objections that plaintiffs never asserted themselves to be the widow or daughter of the deceased. Plaintiff No. 1 never came to the house of the deceased during his lifetime nor was she ever seen living with the deceased as his daughter. Similarly, plaintiff no.2 was not seen living with the deceased at any time, hence plaintiff no.1 and 2 are bound to prove their relationship with the deceased Balak Ram. In para-1 of the reply on merits, it was vehemently denied that plaintiff no.1 was the daughter of the deceased and plaintiff no. 2 was the widow of the deceased.

Paragu never lived as the wife of the deceased Balak Ram and the plaintiff No.1 is not the daughter of the deceased. In para-2 of the reply on merits, it was vehemently denied that Balak Ram was the

husband of plaintiff no. 2. The Plaintiff No.2 was required to prove the fact that she was the wife of the deceased at the time of the death and similarly plaintiff no.1 is also .

required to prove her relationship with the deceased. It was asserted in para-3 of the reply on merits that there was no relationship between the plaintiffs and the deceased Balak Ram.

The suit is bound to fail. The plaintiffs have fabricated a false story. It was stated in para-4 of the reply on merits that the deceased had no wife at the time of his death, who died issueless. The plaintiffs have to prove that plaintiff no. 1 is the daughter and plaintiff no. 2 is the widow of the deceased. None of the plaintiffs are related to the deceased to enable them to succeed to the estate of the deceased. It was stated in para-5 of the reply on merits that plaintiffs have no relations with the deceased nor they were seen living in the company of the deceased. The deceased lived with the father of defendant no. 1 and treated the defendant like his son. It was not understood how the plaintiffs were styling themselves as the widow and daughter of the deceased who are not related as such. The plaintiffs are trying to get the property of the deceased. It is for the plaintiffs to prove that they are entitled to succeed being his widow and daughter. It was stated in para-6 of the reply on merits that plaintiffs are not legal heirs of the deceased and no question of calling them as such arose. It was stated in para-7 .

that the plaintiffs have no right to succeed the estate of the deceased as neither of them is recorded as widow and daughter of the deceased because the deceased had no wife at the time of his death nor did he have the daughter named plaintiff no. 1.

of Deceased died issueless. plaintiff no. 1 is a stranger who seems to be the daughter of plaintiff no.2 from somebody else because Plaintiff No. 2 was not the wife of the deceased at the time of his death.

18. It is apparent from the perusal of the entire written statement that the defendant had consistently denied the relationship with the plaintiffs and the deceased. True that the written statement used the words, "at the time of death" in some places but that does not imply that the relationship was only denied at the time of the death and not during the lifetime.

The defendant had categorically mentioned that plaintiffs have no concern with the deceased. The words at the time of the death were used to highlight the fact that the deceased had no issue and he was staying with the defendant as his son at the time of his death and that is why he had executed a Will in favour of the defendant. When the defendant was consistently denying the relationship between the plaintiffs and the deceased, the words .

"at the time of death" should not have been highlighted to hold that there was a denial of the relationship only at the time of the death. It was laid down by the Hon'ble Supreme Court in *Des Raj v. Bhagat Ram*, (2007) 9 SCC 641: 2007 SCC OnLine SC 221 that the pleadings in the Mufassil have to be construed liberally as a whole. It was observed at page 647: -

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17. It may be true that in his plaint, the plaintiff did not specifically plead ouster but mofussil pleadings, as is well known, must be construed liberally. Pleadings must be construed as a whole.

18. In *Devasahayam v. P. Savithramma* [(2005) 7 SCC 653] this Court opined: (SCC p. 661, para 20) "20. The pleadings as are well known must be construed reasonably. The contention of the parties in their pleadings must be culled out from reading the same as a whole. Different considerations on the construction of pleadings may arise between pleadings in the mofussil court and pleadings in the original side of the High Court."

19. Only because the parties did not use the terminology which they should have, ipso facto, would not mean that the ingredients for satisfying the requirements of the statute are absent. There cannot be any doubt whatsoever that having regard to the changes brought about by Articles 64 and 65 of the Limitation Act, 1963 vis-à-vis Articles 142 and 144 of the Limitation Act, 1908, the onus to prove adverse possession would be on the person who raises such a plea. It is also furthermore not in dispute that the possession of a co-sharer is presumed to be the possession of the other co-sharers unless the contrary is proved.

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19. If the pleadings are read as a whole, it cannot lead to an inference that the defendant had denied the relationship of the plaintiffs with the deceased only at the time of his death and not during his lifetime. Hence, the premise of the judgment of the learned First Appellate Court is not correct.

20. Learned First Appellate Court had placed heavy reliance upon the certificate (Ex.PW-4/A) in which one daughter was stated to have been born to Balak Ram on 12.7.1966. Learned Trial Court had rightly pointed out that the name of the daughter was not mentioned. Even the name of the mother was not mentioned, although, there is a column for the same. This document has to be read with the statement of Mansa Ram (PW-

3), who stated in his cross-examination that Paragu had one daughter who was born after three years of marriage. She was named Amra Devi at the time of birth and this name has continued since then. As per the plaint, the marriage was solemnized in the year 1961. As per this witness, Amra Devi was born after three years of marriage and she was so named at the time of her birth. Hence, his testimony does not corroborate the contents of the birth certificate (Ext.PW-4/A) because it does not mention the name of Amra Devi and even the date of birth is .

five years after the marriage.

21. The Learned Trial Court held that this document was not connected to Balak Ram (deceased). Learned First Appellate Court held that there was no evidence that only one Balak Ram of resided in

the village. Kameshwar Gupta (PW-4) stated in his rt cross-examination that he was not aware of the number of persons in the village named Balak Ram. He comes from the village itself and could have easily stated that only one Balak Ram resides in the village. The fact that he could not say about the number of Balak Ram in the village supports the conclusion of the learned Trial Court that the possibility of more than one Balak Ram residing in the village could not be ruled out and it is not proved that the entry refers to Balak Ram deceased.

22. Learned First Appellate Court also placed heavy reliance upon the petition (Ex. PQ) stated to have been filed under Section 10 of the Hindu Marriage Act. This petition (Ex.

PQ) is written in two typed pages. There is no evidence that it was ever filed in Court. It is not the certified copy of the record of the Court. It is not even signed by the counsel or the petitioner Paragu Devi. Learned Trial Court had rightly pointed out that .

this document mentions that Paragu Devi had given birth to one daughter Nirmala who was alive and one son who died when he was 27 days old. The plaint does not mention the birth of any son. Even Mansa Ram (PW-3), brother of Paragu Devi stated in of his examination-in-chief that one daughter was born to Paragu who is married. He has not stated anything about the birth of the rt son. Thus, the learned Trial Court had rightly declined to place reliance upon this document and the Learned First Appellate Court erred in holding this document corroborated the version of the plaintiff.

23. The document would have been a valuable piece of evidence had the same been the certified copy of the record of the Court. The reply to the petition would have shown the stand taken by Balak Ram. The acknowledgement of the marriage or the birth of the children would have been a valuable piece of evidence. Had such a petition been filed, there was no difficulty in getting the certified copy of the record. The fact that no such record was brought would make it difficult to place reliance upon this document.

24. Even Paragu Devi did not say anything about the filing of any petition under Section 10 of the Hindu Marriage Act.

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She did not mention what happened to this petition. Thus, the learned First Appellate Court erred in placing reliance upon this document to hold that it corroborated the version of the plaintiff regarding the relationship between her and the deceased.

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25. The plaintiff examined Padam Dev (PW-2), who rt stated that he had solemnized the marriage of Paragu on 06 Baishakh, 2017 Samvat. He stated in his cross-examination that he was married in Jaith 1993 Samvat. He had solemnized the marriage of Dila Ram and many other persons but he did not remember the dates of their marriages.

26. Learned Trial Court had held him to be an unreliable witness because he did not remember any other date except the date of the marriage of the plaintiff. Significantly, he even did not remember the date of his marriage and stated that his marriage was solemnized in Jaith 1993 Samwvat without mentioning any particular date. This shows that his memory cannot be trusted regarding the dates. Therefore, the learned Trial Court had rightly declined to place reliance on his testimony.

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27. The plaintiff had specifically stated in the plaint that the marriage was solemnized according to the customary law prevalent in the Arki area. Padam Dev (PW-2) on the other hand stated that the marriage was solemnized according to Hindu of Rites and Customs. The parties had taken steps around the rt sacred fire. He specifically stated in his cross-examination that the marriages are solemnized according to Vedic rituals or customs. The marriage according to Vedic rituals is solemnized according to Shastras, whereas the customary marriage is entirely different in where the money is exchanged. Thus, this witness does not corroborate the version of the plaintiffs that the marriage was solemnized according to the custom.

28. Learned First Appellate Court held that the ceremonies were not important because the dispute regarding the parties was not whether the ceremonies were performed or not. This is not acceptable. Learned First Appellate Court ignored the fact that ceremonies were an important part of the marriage and if there was a discrepancy regarding the marriage, the whole marriage would become doubtful.

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29. Mansa Ram (PW-3) stated that he is the brother of Paragu. The marriage between Paragu and Balak Ram was solemnized around 40 years before the date of his deposition.

Learned Trial Court had rightly pointed out that he was aged 52 of years on the date of his deposition and would have been 12 years rt of age at the time of the marriage. Thus, learned Trial Court was right in declining to place reliance upon his testimony keeping in view his age at the time of the marriage.

30. It was laid down by the Hon'ble Supreme Court in Laxmibai v. Bhagwantbuva, (2013) 4 SCC 97: (2013) 2 SCC (Civ) 480: 2013 SCC OnLine SC 101 that the First Appellate Court should not interfere with the appreciation of evidence by the learned Trial Court regarding the credibility unless there is some feature which has escaped the Trial Judge's notice. It was observed at page 116:-

"43. In Rajbir Kaur v. S. Chokesiri and Co. [(1989) 1 SCC 19:

AIR 1988 SC 1845] this Court held that the trial court is the best judge of evidence. Furthermore, in Sarju Pershad Ramdeo Sahu v. Jwaleshwari Pratap Narain Singh [1950 SCC 714: AIR 1951 SC 120], this Court held, that when there is a conflict of oral evidence of the parties on any matter in issue and the decision hinges upon the

credibility of the witnesses, then unless there is some special feature about the evidence of a particular witness which has escaped the .

trial Judge's notice, or where there is a sufficient balance of improbability to displace his opinion as to where credibility lies, the appellate court must (sic not) interfere with the finding of the trial Judge on a question of fact.

44. In Jagdish Singh v. Madhuri Devi [(2008) 10 SCC 497: AIR 2008 SC 2296] this Court held : (SCC pp. 507-08, paras 35 & 37) of "35. ... '8. ... When there is a conflict of oral evidence on any matter in issue and its resolution turns upon the credibility of the witnesses, the general rule is that the rt appellate court should permit the findings of fact rendered by the trial court to prevail unless it clearly appears that some special feature about the evidence of a particular witness has escaped the notice of the trial court or there is a sufficient balance of improbability to displace its opinion as to where the credibility lies.' [Ed.: As observed in Madhusudan Das v.

Narayanibai, (1983) 1 SCC 35 at pp. 39-40, para 8.] ***

37. ... When the court of original jurisdiction has considered oral evidence and recorded findings after seeing the demeanour of witnesses and having applied its mind, the appellate court is enjoined to keep that fact in mind. It has to deal with the reasons recorded and conclusions arrived at by the trial court. Thereafter, it is certainly open to the appellate court to come to its own conclusion if it finds that the reasons which weighed with the trial court or conclusions arrived at were not in consonance with law." [See also Dharamvir v. Amar Singh [(1996) 3 SCC 158: AIR 1996 SC 2314] (SCC p. 170, para 12), Santosh Hazari v. Purushottam Tiwari [(2001) 3 SCC 179: AIR 2001 SC 965] and G. Amalorpavam v. R.C. Diocese of Madurai[(2006) 3 SCC 224] .]

45. Similarly, in Santosh Hazari v. Purushottam Tiwari [(2001) 3 SCC 179: AIR 2001 SC 965] this Court observed :

(SCC p. 188, para 15) .

"15. ... The appellate court has jurisdiction to reverse or affirm the findings of the trial court. First appeal is a valuable right of the parties and unless restricted by law, the whole case is therein open for rehearing both on questions of fact and law. ... While writing a judgment of reversal the appellate court must remain conscious of two principles. Firstly, the findings of fact of based on conflicting evidence arrived at by the trial court must weigh with the appellate court, more so when the findings are based on oral evidence recorded by the same Presiding Judge who authors the rt judgment. This certainly does not mean that when an appeal lies on facts, the appellate court is not competent to reverse a finding of fact arrived at by the trial Judge. As a matter of law, if the appraisal of the evidence by the trial court suffers from a material irregularity or is based on inadmissible evidence or conjectures and surmises, the appellate court is entitled to interfere with the finding of fact."

[See also Union of India v. Ranchod [(2007) 14 SCC 326: AIR 2008 SC 938] (SCC pp. 330-31, para 11).]

31. Thus, the learned First Appellate Court had erred in interfering with the findings of fact recorded by the learned Trial Court related to the credibility of the witnesses.

32. Plaintiff Paragu Devi stated that Amara Devi was born five years after the marriage with deceased Balak Ram. One son was also born but he died. This means that she resided with Balak Ram at least for five years. She has not produced any witness of the village who had treated them as husband and wife. She has not even examined any witnesses from her .

paternal home who had treated her and Balak Ram as husband and wife. The best evidence would have been the evidence of the villagers who had seen the plaintiff Paragu and Balak Ram residing together as husband and wife and professing to the of world that they were husband and wife. No document was produced to show that Balak Ram ever acknowledged Paragu rt Devi as his wife or Amra Devi as his daughter. It is an admitted version that Balak Ram was a public servant. He could have declared the relationship in medical reimbursement, GPF nomination, or the service record; however, no such record was produced to corroborate the version of the plaintiff Paragu Devi.

Thus, in these circumstances, her version could not have been relied upon, merely because the defendant had stated in some parts of the written statement that Balak Ram had no wife or daughter living at the time of his death.

33. Heavy reliance was placed upon the suggestion made to Paragu Devi that she used to roam outside and had not served Balak Ram to hold that the suggestion proved the case of the plaintiff. This cannot be accepted. The plaintiffs had to stand on their own legs and could not take advantage of the weakness of the case of the defendants. A stray suggestion on behalf of the .

defendants that she had not served the deceased Balak Ram cannot lead to any interference that the marriage was admitted in the absence of any other corroborating evidence.

34. Therefore, the learned First Appellate Court erred in of holding that the relationship of the plaintiffs and Balak Ram was rt duly proved on record and these substantial questions of law are answered accordingly.

Substantial Question of Law No.2:

35. The plaintiff No. 1 did not step into the witness box.

She has not given any reason for non-appearance in the Court.

Learned Trial Court held that an adverse inference has to be drawn against her because she was the best witness to prove that she was born on 12.4.1955 and that She is the daughter of Balak Ram. Learned Trial Court erred in drawing an adverse inference. The paternity and date of birth are not

within the knowledge of a person. This information is supplied to him by his relatives and is hearsay; hence, a person cannot be said to be the best witness regarding the paternity or his date of birth.

36. However, the cross-examination of plaintiff No.1 was important to establish that she had treated Balak Ram as her .

father and was being treated by the society as the daughter of Balak Ram. It was laid down by the Hon'ble Supreme Court in Iqbal Basith & others Vs. N. Subballakshmi & others 2021 (2) SCC 715, that when a party does not appear in person to depose and of examine his power of attorney, an adverse inference has to be drawn. It was observed: -

rt "9. The present suit was instituted by the appellants in 1974 seeking permanent injunction as the respondents attempted to encroach on their property. The suit schedule property was described as no. 44/6. The respondents in their written statement claimed ownership and possession of property no. 42, acknowledging that other properties lay in between. A feeble vague objection was raised, but not pursued, questioning the title of the appellants. The respondents raised no genuine objection to the validity or genuineness of the government documents and the registered sale deeds produced by the appellants in support of their lawful possession of the suit property. The original defendant no. 1 did not appear in person to depose and be cross-examined in the suit. His younger brother deposed on the basis of a power of attorney, acknowledging that the latter had separated from his elder brother. No explanation was furnished as to why the original defendant did not appear in person to depose. We find no reason not to draw an adverse inference against defendant no. 1 in the circumstances.

10. In Iswar Bhai C. Patel vs. Harihar Behera, (1999) 3 SCC 457 this Court observed as follows:-

"17.....Having not entered into the witness box and having not presented himself for cross- examination, an adverse presumption has to be .

drawn against him on the basis of the principles contained in Illustration (g) of Section 114 of the Evidence Act, 1872."

37. Mr. Suneet Goel, Advocate, learned counsel for the plaintiffs relied upon the judgment of this Court in Anjani Kumar of Vs. Desh Raj and others 2013 (3) ShimLC 1577 and Jaswant Singh Negi Vs. Rajinder Kumar and another 2011 (2) ShimLC 413, wherein this Court had held that adverse inference can be drawn when the evidence on record is not sufficient. This judgment does not apply to the present case because it has already been found above that the evidence on record is not sufficient. Thus, the submission that the adverse inference could not have been drawn in the present case is not acceptable.

38. The Learned First Appellate Court did not disbelieve the reason recorded by the Learned Trial Court and did not advert to the non-appearance of plaintiff no. 1 in the witness box. Hence, this substantial question of law is answered accordingly.

Substantial Question of Law No.3:

39. The Hon'ble Supreme Court explained the powers of .

the First Appellate Court in Shasidhar v. Ashwini Uma Mathad, (2015) 11 SCC 269: 2015 SCC OnLine SC 26 at page 273, as under:-

"10. The powers of the first appellate court, while deciding the first appeal under Section 96 read with Order 41 Rule 31 of the Code, are indeed well defined by various of judicial pronouncements of this Court and are, therefore, no more res integra.

11. As far back in 1969, the learned Judge -- V.R. Krishna rt Iyer, J. (as His Lordship then was the Judge of the Kerala High Court) while deciding the first appeal under Section 96 CPC in Kurian Chacko v. Varkey Ouseph [Kurian Chacko v. Varkey Ouseph, 1968 SCC OnLine Ker 101: AIR 1969 Ker 316], reminded the first appellate court of its duty as to how the first appeal under Section 96 should be decided.

In his distinctive style of writing and subtle power of expression, the learned Judge held as under: (SCC OnLine Ker paras 1-3) "1. The plaintiff, unsuccessful in two courts, has come up here aggrieved by the dismissal of his suit which was one for declaration of title and recovery of possession. The defendant disputed the plaintiff's title to the property as also his possession and claimed both in himself. The learned Munsif, who tried the suit, recorded findings against the plaintiff both on title and possession. But, in appeal, the learned Subordinate Judge disposed of the whole matter glibly and briefly, in a few sentences.

2. An appellate court is the final court of fact ordinarily and therefore a litigant is entitled to a full and fair and independent consideration of the evidence at the appellate stage. Anything less than this is unjust to him and I have no doubt that in the present case, the learned Subordinate Judge has fallen far short of what is expected of him as an .

appellate court.

3. Although there is a furious contest between the counsel for the appellant and for the respondent, they appear to agree with me in this observation."

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40. It was laid down by the Hon'ble Supreme Court in *Somakka v. K.P. Basavaraj*, (2022) 8 SCC 261: (2022) 4 SCC (Civ) rt 437: 2022 SCC OnLine SC 736 that the Appellate Court must come into close quarters with the reasoning assigned by the learned Trial Court and then assign its reasoning for arriving at different findings. It was observed:

"32.1. In *Santosh Hazari v. Purushottam Tiwari*, (2001) 3 SCC 179, para 15] (relevant portion of para 15) is reproduced below : (SCC pp. 188-89) "15. ... The appellate court has jurisdiction to reverse or affirm the findings of the trial court. First appeal is a valuable right of the parties and unless restricted by law, the whole case is therein open for rehearing both on questions of fact and law. The judgment of the appellate court must, therefore, reflect if conscious application of mind and record findings supported by reasons, on all the issues arising along with the contentions put forth, and pressed by the parties for the decision of the appellate court. ... while reversing a finding of fact the appellate court must come into close quarters with the reasoning assigned by the trial court and then assign its own reasons for arriving at a different finding. This would satisfy the court hearing a further appeal that the first appellate court had discharged the duty expected of it."

32.2. In *H.K.N. Swami v. Irshad Basith*, (2005) 10 SCC 243], this Court again reiterated the same principle in para 3 of the judgment: (SCC p. 244) "3. The first appeal has to be decided on facts as well as on law. In the first appeal, parties have the right to be heard both on questions of law as also on facts and the first appellate court is required to of address itself to all issues and decide the case by giving reasons. Unfortunately, the High Court, in the present case has not recorded any finding either on facts or on rt law. Sitting as the first appellate court it was the duty of the High Court to deal with all the issues and the evidence led by the parties before recording the finding regarding title."

32.3. In 2015, this Court again in *Vinod Kumar v. Gangadhar*, (2015) 1 SCC 391 : (2015) 1 SCC (Civ) 521 considering the previous judgment recorded its view in paras 18 and 19 which are reproduced hereunder : (SCC p.

396) "18. In our considered opinion, the High Court did not deal with any of the submissions urged by the appellant and/or the respondent nor it took note of the grounds taken by the appellant in grounds of appeal nor made any attempt to appreciate the evidence adduced by the parties in the light of the settled legal principles and decided case law applicable to the issues arising in the case with a view to find out as to whether the judgment of the trial court can be sustained or not and if so, how, and if not, why.

19. Being the first appellate court, it was the duty of the High Court to have decided the first appeal keeping in view the scope and powers conferred on it under Section 96 read with Order 41 Rule 31CPC mentioned above. It was unfortunately not done, thereby, resulting in causing prejudice to the appellant whose valuable right to prosecute in the first appeal on facts and law was adversely

affected which, in turn, .

deprived him of a hearing in the appeal in accordance with law. It is for this reason, that we were unable to uphold the impugned judgment [Vinod Kumar v. Gangadhar First Appeal No. 173 of 1999, order dated 21- 3-2013 (MP)] of the High Court."

32.4. Very recently, this Court in 2022 (to which one of us, Brother Abdul Nazeer, J. was a member) in *Manjula v.*

of *Shyamsundar*, (2022) 3 SCC 90 : (2022) 2 SCC (Civ) 33], reiterated the same view in para 8 thereof, which is reproduced hereunder : (SCC p. 96) rt "8. Section 96 of the Civil Procedure Code, 1908 (for short "CPC") provides for filing of an appeal from the decree passed by a court of original jurisdiction. Order 41 Rule 31CPC provides the guidelines to the appellate court for deciding the appeal. This rule mandates that the judgment of the appellate court shall state:

(a) points for determination;

(b) the decision thereon;

(c) the reasons for the decision; and

(d) where the decree appealed from is reversed or varied, the relief to which the appellant is entitled.

Thus, the appellate court has the jurisdiction to reverse or affirm the findings of the trial court. It is settled law that an appeal is a continuation of the original proceedings. The appellate court's jurisdiction involves a rehearing of appeal on questions of law as well as fact. The first appeal is a valuable right, and, at that stage, all questions of fact and law decided by the trial court are open for reconsideration. The judgment of the appellate court must, therefore, reflect a conscious application of mind and must record the court's findings, supported by reasons for its decision in respect of all the issues, along with the contentions put forth and pressed by the parties. Needless to say, the first appellate court is required to comply with the .

requirements of Order 41 Rule 31CPC and non-

observance of these requirements lead to infirmity in the judgment."

33. From the above settled legal principles on the duty, scope and powers of the first appellate court, we are of the firm view and fully convinced that the High Court committed a serious error in neither forming the points of for determination nor considering the evidence on record, in particular, which had been relied upon by the trial court. The impugned judgment [*K.P. Basavaraj v. Somakka*, 2006 SCC OnLine Kar 992] of the High Court is rt thus unsustainable in law and liable to be set aside."

41. This position was reiterated in *Dheeraj Singh v.*

Greater Noida Industrial Development Authority, 2023 SCC OnLine SC 768, wherein, it was observed:

"19. In the case of Santosh Hazari Vs. Purushottam Tiwari (Dead) by LRs. (2001) 2 SC 407, this Court held that the court of appeal has a duty to apply its mind to all issues raised before it and to discharge such duty, it must also record its findings against all such issues raised. For the sake of convenience, the relevant paragraph of the said judgment is being extracted herein:

"The Appellate Court has jurisdiction to reverse or affirm the findings of the trial court. The first appeal is a valuable right of the parties and unless restricted by law. The whole case is therein open for rehearing both on questions of fact and law. The judgment of the Appellate Court must, therefore, reflect its conscious application of mind, and record findings supported by reasons, on all the issues arising along with the contentions put forth, and pressed by the parties for the decision of the Appellate Court.

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While reversing a finding of fact the Appellate Court must come into close quarters with the reasoning assigned by the trial court and then assign its own reasons for arriving at a different finding. This would satisfy the Court hearing a further appeal that the First Appellate Court had discharged the duty expected of it."

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20. In the case of Madhukar and Ors. Vs. Sangram and Ors. (2001) 4 SCC 756, this Court, while reiterating the principles laid down in the Santosh Hazari Judgment *rt* (Supra), observed that the court of first appeal has a duty to record its findings qua all the issues raised before it, and in cases where the High Court fails to do the same, the matter must be remanded to the same court again for fresh adjudication.."

22. The abovementioned discussions and judgments, when contextualized to the present case, would show that the High Court was under an obligation to consider the cross objections filed by the Appellants herein. Since such an obligation was not discharged while passing the judgment in appeal, we are of the considered opinion that the matter is fit for remand to the High Court for fresh adjudication on the grounds raised in the cross objections during the appeal by the appellants herein.

42. Similar is the judgment of this court in *Sunder Singh v. Roop Singh* 2019 SCC OnLine HP 550 wherein it was held:

"3. It is a settled principle of law that the right to file the first appeal against the decree under Section 96 of the Code of Civil Procedure is a valuable legal right of the

litigant. The jurisdiction of the First Appellate Court while hearing the First appeal is very wide like that of the learned trial Court and it is open to the appellant to attack all findings of fact or/and of law in the first appeal. It is the duty of the first appellate Court to appreciate the entire evidence and may come to a different conclusion .

from that of the trial Court. While doing so, the judgment of the Appellate Court must reflect its conscious application of mind and record findings supported by reasons, on all issues arising along with the contentions put forth, and pressed by the parties for decision of the Appellate Court. While reversing a finding of fact, the Appellate Court must come into close quarters with the of reasoning assigned by the trial Court and then assign its own reasons for arriving at a different finding. This would satisfy the court hearing a further appeal that the First Appellate Court had discharged the duty expected of it.

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4. The scope, ambit and power of the first Appellate Court while deciding the first appeal have been the subject matter of various judicial pronouncements and I may refer to the pronouncement of the Hon'ble Supreme Court in Shasidhar and others vs. Smt. Ashwini Uma Mathad and another, (2015) AIR SCW 777 wherein it was held as follows:

"11. Having heard learned counsel for the parties and on perusal of the record of the case and examining the issue arising in this appeal, we find force in the submissions of the learned counsel for the appellants.

12. The powers of the first appellate Court, while deciding the first appeal under Section 96 read with Order XLI Rule 31 of the Code, are indeed well defined by various judicial pronouncements of this Court and are, therefore, no more res integra.

13. As far back in 1969, the learned Judge -V.R. Krishna Iyer, J (as His Lordship then was the judge of Kerala High Court) while deciding the first appeal under Section 96 of the CPC in Kurian Chacko vs. Varkey Ouseph, (1969) AIR Kerala 316, reminded the first appellate Court of its duty as to how the first appeal under Section 96 should be decided. In his distinctive style of writing and subtle power of expression, the learned judge held as under:

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"1. The plaintiff, unsuccessful in two Courts, has come up here aggrieved by the dismissal of his suit which was one for declaration of title and recovery of possession. The defendant disputed the plaintiff's title to the property as also his possession and claimed both in himself. The learned Munsif, who of tried the suit, recorded findings

against the plaintiff both on title and possession. But, in appeal, the learned Subordinate Judge disposed of the whole matter glibly and rt briefly, in a few sentences.

2. An appellate court is the final Court of fact ordinarily and therefore a litigant is entitled to a full and fair and independent consideration of the evidence at the appellate stage. Anything less than this is unjust to him and I have no doubt that in the present case, the learned Subordinate Judge has fallen far short of what is expected of him as an appellate Court. Although there is a furious contest between the counsel for the appellant and the respondent, they appear to agree with me in this observation....."

(Emphasis supplied)

14. This Court in a number of cases while affirming and then reiterating the aforesaid principle has laid down the scope and powers of the first appellate Court under Section 96 of the Code.

15. We consider it apposite to refer to some of the decisions.

16. In Santosh Hazari vs Purushottam Tiwari (Deceased) by L.Rs., (2001) 3 SCC 179, this Court held (at pages 188- 189) as under:

".....the appellate court has jurisdiction to reverse or affirm the findings of the trial court. First appeal is a valuable right of the .

parties and unless restricted by law, the whole case is therein open for rehearing both on questions of fact and law. The judgment of the appellate court must, therefore, reflect its conscious application of mind and record findings supported by reasons, on all the issues arising along with the contentions put of forth, and pressed by the parties for the decision of the appellate court.....while reversing a finding of fact the appellate court rt must come into close quarters with the reasoning assigned by the trial court ... and then assign its own reasons for arriving at a different finding. This would satisfy the court hearing a further appeal that the first appellate court had discharged the duty expected of it....."

17. The above view has been followed by a three- judge Bench decision of this Court in Madhukar & Ors. v. Sangram & Ors., (2001) 4 SCC 756, wherein it was reiterated that sitting as a court of first appeal, it is the duty of the High Court to deal with all the issues and the evidence led by the parties before recording its findings.

18. In H.K.N. Swami v. Irshad Basith, (2005) 10 SCC 243, this Court (at p. 244) stated as under:

"3. The first appeal has to be decided on facts as well as on law. In the first appeal, parties have the right to be heard both on questions of law as also on facts and the

first appellate court is required to address itself to all issues and decide the case by giving reasons. Unfortunately, the High Court, in the present case has not recorded any finding either on facts or on law. Sitting as the first appellate court it was the duty of the High Court to deal with all the issues and the evidence led by the parties before recording the finding .

regarding title."

19. Again in *Jagannath v. Arulappa & Anr.*, (2005) 12 SCC 303, while considering the scope of Section 96 of the Code this Court (at pp. 303 -04) observed as follows:

"2. A court of first appeal can reappraise the entire evidence and come to a different of conclusion....."

20. Again in *B.V Nagesh & Anr. vs. H.V.Sreenivasa Murthy*, (2010) 13 SCC 530, this Court taking note of all the earlier judgments of this Court reiterated the aforementioned principle with these words:

"3. How the regular first appeal is to be disposed of by the appellate court/High Court has been considered by this Court in various decisions. Order 41 CPC deals with appeals from original decrees. Among the various rules, Rule 31 mandates that the judgment of the appellate court shall state: (a) the points for determination; (b) the decision thereon;

(c) the reasons for the decision; and (d) where the decree appealed from is reversed or varied, the relief to which the appellant is entitled.

4. The appellate court has jurisdiction to reverse or affirm the findings of the trial court. The first appeal is a valuable right of the parties and unless restricted by law, the whole case is therein open for rehearing both on questions of fact and law. The judgment of the appellate court must, ... therefore, reflect its conscious application of mind and record findings supported by reasons, on all the issues arising along with the contentions put forth, and pressed by the parties for decision of the appellate court. Sitting as a court of first appeal, it was the duty of the High Court .

to deal with all the issues and the evidence led by the parties before recording its findings. The first appeal is a valuable right and the parties have a right to be heard both on questions of law and on facts and the judgment in the first appeal must address itself to all the issues of law and fact and of decide it by giving reasons in support of the findings. (Vide *Santosh Hazari v. Purushottam Tiwari*, (2001) 3 SCC 179 at p. 188, para 15 and *rt Madhukar v. Sangram*, (2001) 4 SCC 756 at p. 758, para 5.)

5. In view of the above salutary principles, on going through the impugned judgment, we feel that the High Court has failed to discharge the obligation placed on it as a first appellate court. In our view, the judgment under appeal is cryptic and none of the relevant aspects have even been noticed.

The appeal has been decided in an unsatisfactory manner. Our careful perusal of the judgment in the regular first appeal shows that it falls short of the considerations, which are expected from the court of first appeal.

Accordingly, without going into the merits of the claim of both parties, we set aside the impugned judgment and decree of the High Court and remand the regular first appeal to the High Court for its fresh disposal in accordance with the law."

21. The aforementioned cases were relied upon by this Court while reiterating the same principle in State Bank of India & Anr. vs. Emmsons International Ltd. & Anr., (2011) 12 SCC 174. This Court has recently taken the same view on similar facts arising in Vinod Kumar vs. Gangadhar, (2014) 12 Scale 171."

5. Similar reiteration of law can be found in the .

subsequent judgments of the Hon'ble Supreme Court in Union of India vs. K.V. Lakshman and others, (2016) AIR SC 3139 and in Laliteshwar Prasad Singh & Ors. vs. S.P. Srivastava (deceased) through LR's, (2017) 2 SCC 415.

43. In the present case, the learned First Appellate Court of had not displaced all the reasons assigned by the learned Trial Court; therefore, this substantial question of law is answered rt accordingly.

Substantial Question of Law No.4:

44. The plaintiff had filed a civil suit seeking a declaration and permanent prohibitory injunction. Learned First Appellate Court held in para-27 of the judgment that it could be legitimately argued that the suit against the defendants for claiming relief of possession is not maintainable. The issue therefore, perhaps to be answered in the affirmative, however, it was held that since the plaintiffs are proved to be the owners;

therefore, the relief could be modified.

45. It was laid down by the Hon'ble Supreme Court in Ram Saran v. Ganga Devi, (1973) 2 SCC 60 that a civil suit for seeking declaration without praying for possession is not maintainable when the plaintiff is out of possession. It was held at page 60: -

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"2. The fact-finding courts, namely the trial court as well as the appellate courts have come to the conclusion that during the lifetime of Chhabili, she was in possession of a portion of the suit properties and the other portion remained in possession of the plaintiffs. The further finding reached by those courts is that after the death of of ChhabiliKuer, Ganga Devi took unlawful possession of the properties which were in

possession of ChhabiliKuer. They also found that Ganga Devi was not the heir of rt Chhabili but on the other hand, the plaintiffs were her heirs.

4. We are in agreement with the High Court that the suit is hit by Section 42 of the Specific Relief Act. As found by the fact-finding courts, Gange Devi is in possession of some of the suit properties. The plaintiffs have not sought possession of those properties. They merely claimed a declaration that they are the owners of the suit properties. Hence the suit is not maintainable. In these circumstances, it is not necessary to go into the other contention that the suit is barred by limitation."

46. A similar view was taken in Union of India v. Ibrahim Uddin, (2012) 8 SCC 148 : (2012) 4 SCC (Civ) 362: 2012 SCC OnLine SC 528, wherein it was observed at page 173:-

"55. The section provides that courts have discretion as to declaration of status or right, however, it carves out an exception that a court shall not make any such declaration of status or right where the complainant, being able to seek further relief than a mere declaration of title, omits to do so.

56. In Ram Saran v. Ganga Devi [(1973) 2 SCC 60: AIR 1972 SC 2685] this Court had categorically held that the suit seeking for declaration of title of ownership but where

possession is not sought, is hit by the proviso of Section 34 of the Specific Relief Act, 1963 (hereinafter called "the Specific Relief Act") and, thus, not maintainable. In Vinay Krishna v. Keshav Chandra [1993 Supp (3) SCC 129: AIR 1993 SC 957] this Court dealt with a similar issue where the plaintiff was not in exclusive possession of the property and had filed a suit seeking a declaration of title of ownership. A similar view has been reiterated observing that the suit was not maintainable if barred by the proviso to Section 34 of the Specific Relief Act. (See also Gian rt Kaur v. Raghubir Singh [(2011) 4 SCC 567 : (2011) 2 SCC (Civ) 366] .)

57. In view of the above, the law becomes crystal clear that it is not permissible to claim the relief of declaration without seeking consequential relief.

58. In the instant case, the suit for declaration of title of ownership had been filed, though Respondent 1-plaintiff was admittedly not in possession of the suit property.

Thus, the suit was barred by the provisions of Section 34 of the Specific Relief Act and, therefore, ought to have been dismissed solely on this ground. The High Court though framed a substantial question on this point but for unknown reasons did not consider it proper to decide the same."

47. It was submitted that the plaintiff has sought the relief of permanent prohibitory injunction and it is not a case of absence of relief. Hence, the suit cannot be held to be barred.

Reliance was placed upon the judgment of the Hon'ble Supreme Court in Akkamma v. Vemavathi, 2021 SCC OnLine SC 1146.

48. It is true that the Hon'ble Supreme Court held in Akkamma (supra) that where a person is out of possession and .

has sought the relief of injunction; the relief of declaration can be granted to him. However, the Hon'ble Supreme Court had held otherwise in Arulmigu Chokkanatha Swamy Koil Trust v.

Chandran, (2017) 3 SCC 702: (2017) 2 SCC (Civ) 334: 2017 SCC of OnLine SC 120, wherein it was observed at page 710:-

rt "33. Section 34 of the Specific Relief Act, 1963 provides as follows:

"34. Discretion of court as to declaration of status or right. --Any person entitled to any legal character, or any right as to any property, may institute a suit against any person denying or interested to deny, his title to such character or right, and the court may at its discretion make therein a declaration that he is so entitled, and the plaintiff need not in such suit ask for any further relief:

Provided that no court shall make any such declaration where the plaintiff, being able to seek further relief than a mere declaration of title, omits to do so."

34 [Ed.: Para 34 corrected vide Official Corrigendum No. F-3/Ed.B.J./52/2017 dated 4-9-2017.]. In the present case, the plaintiff having been found not to be in possession and having only sought for declaratory reliefs, the suit was clearly not maintainable and has rightly been dismissed by the trial court. In this context, the reference is made to the judgment of this Court in Ram Saran v. Ganga Devi [Ram Saran v. Ganga Devi, (1973) 2 SCC 60: AIR 1972 SC 2685], wherein in paras 1 and 4 following was stated: (SCC pp. 60-61) "1. This is a plaintiffs' appeal by special leave. Ram .

Saran and Raghubir Saran, the plaintiffs are brothers.

They jointly owned suit property with ChhabiliKuer, widow of Lalita Prasad. After the death of ChhabiliKuer on 8-2-1971, Ganga Devi, the defendant in the suit came forward as the legal representative of ChhabiliKuer and got the mutation effected in her of name in the place of the deceased ChhabiliKuer. In 1958, the plaintiffs brought this suit for a declaration that they are the sole owners of the suit properties. They did not claim possession of either the entire or rt even any portion of the suit properties.

4. We are in agreement with the High Court that the suit is hit by Section 42 of the Specific Relief Act. As found by the fact-finding courts, Ganga Devi is in possession of some of the suit properties. The plaintiffs have not sought possession of those properties. They merely claimed a declaration

that they are the owners of the suit properties. Hence the suit is not maintainable."

35. The plaintiff, who was not in possession, had in the suit claimed only declaratory relief along with mandatory injunction. The plaintiff being out of possession, the relief of recovery of possession was a further relief which ought to have been claimed by the plaintiff. The suit filed by the plaintiff for a mere declaration without relief of recovery of possession was clearly not maintainable and the trial court has rightly dismissed the suit. The High Court neither adverted to the above finding of the trial court nor has set aside the above reasoning given by the trial court for holding the suit as not maintainable. The High Court in the exercise of its jurisdiction under Section 100 CPC could not have reversed the decree of the courts below without holding that the above reasoning given by the courts below was legally unsustainable. We, thus, are of the view that the High Court committed error in .

decreeing the suit." (Emphasis supplied).

49. In the present case, the learned First Appellate Court had not granted the mere declaration but had gone further and granted the relief of possession. This was not permissible even of as per the judgment of the Hon'ble Supreme Court in Akkamma (supra). Thus, the learned First Appellate Court erred in granting the relief which was not sought by the plaintiff. It was specifically held in Akkamma (supra) that where the plaintiff was out of possession, he could not have been granted the relief of possession. It was observed: -

"16. But these statements of law would not operate in this case, as the original plaintiff in the earlier suit had admitted possession as also use of the subject-land by the first defendant. No case of granting a right of user has been made out either. Neither the plaintiff has alleged casual use of the subject-land by the first defendant. The original plaintiff's claim for possession was rejected in the 1982 suit and in the subsequent suit, which gives rise to this appeal, the plaintiff could not demonstrate repossession of land on the basis of which he could obtain injunctive relief from disturbance of possession. In both the two reported decisions in the cases of Devish (supra) and Navalram Laxmidas Devmurari (supra) referred to earlier, the first two Courts - being the Courts of fact had come to affirmative finding about the plaintiffs' possession of the suit property. So far as the proceeding before us is concerned, the finding of the First Court is otherwise. The plaintiffs sought to introduce prayer for .

recovery of possession to cure the defect of not having made out a case on that count by way of amendment of plaint at the appellate stage. The High Court rejected this prayer. We have quoted earlier in this judgment the reason for such rejection. We are in agreement with the High Court on this point. While in a situation of this nature, an amendment of plaint could be asked for (Vinay of Krishna v. Keshav Chandra), such a plea ought to have been made within the prescribed limitation period. This position of law has been clarified in the case of Venkataraja v. Vidyane Dourerad japerumal (Dead) Through rt Legal Representatives [(2014) 14 SCC 502]. In this case, it has been held:--

"24. A mere declaratory decree remains non- executable in most cases generally. However, there is no prohibition upon a party from seeking an amendment in the plaint to include the unsought relief, provided that it is saved by limitation. However, it is obligatory on the part of the defendants to raise the issue at the earliest. (Vide *Parkash Chand Khurana v. Harnam Singh and State of M.P. v. Mangilal Sharma*)."

17. We agree with that part of the decision of the High Court in which it has been held that possession of the suit property was not established by the plaintiffs and hence injunctive relief could not be granted. As we have already recorded, we are also in agreement with the High Court's reasoning for rejecting the plea for amendment. But we do not agree fully with the entire reasoning of the High Court for dismissal of the appeal as spelt out in the said judgment. The bar contained in the proviso to Section 34 of the 1963 Act, in our opinion, could not be applied in the case of the plaintiffs as consequential relief for an injunction from interference with the suit-land was claimed. The prohibition contained in the proviso to Section 34 would operate only if the sole relief is for declaration without any consequential relief. In the plaint of the 1987 suit, relief for injunction was asked for. Such dual relief would protect the suit from being dismissed on .

maintainability grounds. It is a fact that the plaintiff ought to have had asked for recovery of possession, given the factual background of this case, but the plaint as it was originally framed reflected that the original plaintiff was in possession of the suit land. Such a plea rightly failed before the Trial Court and the First Appellate Court.

18. The prohibition or bar contained in proviso to Section of 34 of the 1963 Act determines the maintainability of a suit and that issue has to be tested on the basis the plaint is framed. If the plaint contains claims for declaratory relief as also consequential relief in the form of injunction that it would insulate a suit from an attack on maintainability on the sole ground of bar mandated in the proviso to the aforesaid section. If on evidence the plaintiff fails on consequential relief, the suit may be dismissed on merit so far as the plea for consequential relief is concerned but not on maintainability question invoking the proviso to Section 34 of the 1963 Act. If the plaintiff otherwise succeeds in getting the declaratory relief, such relief could be granted. On this count, we do not accept the ratio of the Karnataka High Court judgment in the case of *Sri Aralappa (supra)* to be good law. In that decision, it has been held:--

"31. Even if the plaintiff comes to Court asserting that he is in possession and that if it is found after trial that he was not in possession on the date of the suit, even then, the suit for declaration and permanent injunction is liable to be dismissed as not maintainable, as no decree for permanent injunction can be granted if the plaintiff is not in possession on the date of the suit. In such circumstances, the plaintiff must amend the plaint before the judgment and seek relief of possession. Therefore, a suit for declaration of title and permanent injunction, by the plaintiff who is not in possession on the date of the suit, when he is able to seek further relief of recovery of possession also, omits to do so, the Court shall not make any such declaration and the suit is liable to be .

dismissed as not maintainable".

19. So far as the reliefs claimed in the suit out of which this appeal arises, prayer for declaration was anchored on two instances of interference with the possession of the land of the plaintiffs and injunctive relief for restraint from interference with the property was also claimed. However, possession of the said property by the original of plaintiff was not established. The alternative relief sought to be introduced at a later stage of the suit was also found to be incapable of being entertained for the reason of limitation. Thus, the foundation of the case of the rt plaintiffs based on these two factual grounds collapsed with the fact-finding Courts rejecting both these assertions or allegations. But that factor ought not to be a ground for denying a declaration of ownership to the plaintiffs. There is no bar in the Specific Relief Act, 1963 in granting a standalone declaratory decree. The Trial Court came to a positive finding that the original plaintiff was the owner of the suit property. But it held that in the absence of a declaration of relief of possession by the plaintiff, a declaration of title cannot be granted. We have already expressed our disagreement with this line of reasoning. It seems to be a misconstruction of the provisions of Section 34 of the 1963 Act. The Trial Court and the High Court have proceeded on the basis that the expression "further relief" employed in that proviso must include all the reliefs that ought to have been claimed or might have been granted. But in our view, that is not the requirement of the said proviso. This takes us to the corollary question as to whether the 1987 suit could have been held to be barred under the principle contained in Order II Rule 2 of the Civil Procedure Code, 1908. In our opinion, the said provisions of the Code would not apply in the facts of this case, as the denial of a legal right in the 1987 suit is pegged on two alleged incidents of 15th and 25th February 1987. These allegations can give rise to claims for declaration which obviously could not be made in the 1982 suit. The claim for declaratory decree could .

well be rejected on merit, but the suit in such a case could not be dismissed invoking the principles incorporated in Order II Rule 2 of the Code of 1908."

50. Thus, the learned First Appellate Court erred in granting the relief of possession without the same being of specifically asked. Hence, this substantial question of law is answered accordingly.

rt Final order:

51. In view of the above, the present appeal is allowed and the judgment and decree passed by the learned First Appellate Court are set aside while those of the learned Trial Court are restored.

52. Pending application(s), if any, also stand(s) disposed of.

(Rakesh Kainthla) Judge 27th September, 2023 (Chander)